

settled upon the child for life with remainder to the *issue*, with a limitation in the case of a daughter to her *husband* for life, the Court regards the limitations to the issue, and in the case of a daughter the limitation of the life estate to the husband as parts of the provision for the child, so that not only the life estate of the child, but also the interests of the * children and husband are brought into [*406] the account as parts of the advance to the child (a).

If a father covenant to settle on his daughter and her children and then makes a bequest to her *children*, this is a satisfaction of the covenant as regards the children of the daughter (b). [So where under the father's covenant the children of a daughter became entitled as tenants in common, and the father gave legacies to one of the children of the daughter, and to two children of a deceased child of the daughter, it was held that the legacies were *pro tanto* a satisfaction of the covenant as to the interests of the legatees (c).] But if a father upon the marriage of his son covenant to settle a fund upon him and his wife and children, and in consideration thereof the *father of the wife* makes a settlement at the same time, and then the father of the son bequeaths a share of his estate to the *son*, the legacy to the son though a satisfaction of the son's interest under the father's settlement, is not a satisfaction of the interest of the son's *children* (d).

12. **Slight differences.** — The Court from its leaning against double portions will not allow *slight differences* in the limitations to rebut the presumption, and by slight differences are meant such as, in the opinion of the judge, leave the two provisions substantially of the same nature (e). The cases upon the subject have generally arisen with reference to

(a) *Kirk v. Eddowes*, 3 Hare, 509. Read the important observations of V. C. p. 521; *Platt v. Platt*, 3 Sim. 503; and see *Campbell v. Campbell*, 1 L. R. Eq. 383; *Russell v. St. Aubyn*, 2 Ch. D. 398; *Romaine v. Onslow*, 24 W. R. 899.

(b) *Campbell v. Campbell*, 1 L. R.

Eq. 383; [*Bennett v. Houldsworth*, 6 Ch. D. 671.]

[(c) *Bennett v. Houldsworth*, 6 Ch. D. 671.]

(d) *McCarogher v. Whieldon*, 3 L. R. Eq. 236.

(e) *Weall v. Rice*, 2 R. & M. 268, per Sir J. Leach; [*Tussaud v. Tussaud*, 9 Ch. D. 363.]